

25STCV11267C 25STCV11267C

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-08-20

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Case Number: 25STCV11267C Hearing Date: August 20, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

August 20, 2026

CASE NUMBER

25STCV11267C

MOTION

Motion for Sanctions

MOVING PARTY

Cross-Defendant GMZ Engineering, Inc.

OPPOSING PARTY

Cross-Complainant City of Calabasas

MOTION

Cross-Defendant

GMZ Engineering, Inc. ("GMZ Engineering") seeks sanctions against Defendant and Cross-Complainant City of Calabasas ("City") pursuant to Code of Civil Procedure section 128.7 based on the City's cross-complaint. The City opposes the motion.

ANALYSIS

Code of Civil Procedure section 128.7

requires an attorney or self-represented litigant to sign all pleadings, petitions, notices of motions and other similar papers. (Code Civ. Proc., § 128.7, subd. (a).) By the signature, the attorney certifies the

"legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law." (Code Civ.

Proc., § 128.7, subd. (b)(2).) If the

Court determines an attorney or self-represented litigant has violated this requirement, the Court may impose sanctions against the attorney or self-represented litigant. (Code Civ.

Proc., § 128.7, subd. (c).)

As set forth in the Court's ruling on GMZ

Engineering's demurrer to the cross-complaint, the Court overrules the demurrer to the sixth cause of action for declaratory relief. Additionally, the Court found grounds to permit the City to amend its other causes of action. Therefore, it remains to be seen whether Plaintiff will successfully do so. Consequently, the

Court cannot impose sanctions because the City's cross-complaint has not found to be "completely without merit." (Plantations

at Haywood 1, LLC v. Plantations at Haywood, LLC (2025) 108 Cal.App.5th 803, 816.)

Therefore, the motion is denied.

GMZ Engineering is

to give notice of the Court's ruling and to file proof of service of same.